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| AOC- 333<br>Rev. 9-14<br>Page 1 of 1<br>Commonwealth of Kentucky<br>Court of Justice <a href="http://www.courts.ky.gov">www.courts.ky.gov</a><br>KRS 218A.1415; 218A.14151;<br>KRS 218A. 275 | <br><b>ORDER SEALING RECORDS FOR<br/>SUCCESSFUL DEFERRED PROSECUTION</b> | Case No. _____<br>Court _____<br>County _____<br>Division _____ |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|

COMMONWEALTH OF KENTUCKY

PLAINTIFF

v.

\_\_\_\_\_

DEFENDANT

The above-named defendant has successfully completed the terms of deferred prosecution set by this Court on \_\_\_\_\_, 2\_\_\_\_\_. Pursuant to KRS 218A.14151, the charge Possession of Controlled Substance in the First Degree against the defendant is dismissed and all records relating to the case, including but not limited to arrest records and records relating to the charges, shall be sealed. If this Order results in the partial sealing of the above-styled case, the clerk is hereby directed to prepare AOC form 336 for the Court's review and approval. The offense shall be deemed never to have occurred, except for determining the defendant's eligibility for deferred prosecution under KRS 218A.14151 or voiding of conviction under KRS 218A.275. The defendant shall not be required to disclose the arrest or other information relating to the charges or participation in the program unless required to do so by state or federal law.

The **Kentucky State Police and other following agencies are hereby ordered to seal** any records in their custody regarding the above-named Defendant and offense(s): \_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_.

So ORDERED this \_\_\_\_\_ day of \_\_\_\_\_, 2\_\_\_\_\_.

\_\_\_\_\_  
Judge

|                                                                                                                                                                                                                                                                                            |                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|
| <b>CERTIFICATION</b>                                                                                                                                                                                                                                                                       |                                 |
| _____, an above-named agency ordered to seal records in our custody certifies: [ <input type="checkbox"/> ] the agency has in its custody no records relating to the Defendant/matter: OR [ <input type="checkbox"/> ] the agency has completed the sealing process ordered by this Court. |                                 |
| Date: _____, 2_____.                                                                                                                                                                                                                                                                       | Agency Records Custodian: _____ |

Distribution: Original - Court File      Certified Copies: Defendant/Attorney; Kentucky State Police; Named Agencies

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\_\_\_\_\_  
Judge

|                                                                                                                                                                                                                                                                                            |                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|
| <b>CERTIFICATION</b>                                                                                                                                                                                                                                                                       |                                 |
| _____, an above-named agency ordered to seal records in our custody certifies: [ <input type="checkbox"/> ] the agency has in its custody no records relating to the Defendant/matter: OR [ <input type="checkbox"/> ] the agency has completed the sealing process ordered by this Court. |                                 |
| Date: _____, 2_____.                                                                                                                                                                                                                                                                       | Agency Records Custodian: _____ |

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